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IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FIFTH DISTRICT

ALLAN C. ALONGI, AS TRUSTEE OF THE RICHARD F. ROUDEBUSH TRUST,

Appellant,

v.

DONNA HANSEN,

Appellee.
_____/

Case No. 5D2026-0416

On Appeal from the Circuit Court of the Fifth Judicial Circuit in and for Lake County, Florida

APPELLANT'S REPLY BRIEF

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INTRODUCTION

Appellee Donna Hansen's ("Hansen") Answer Brief makes one thing clear: Appellant Allan C. Alongi as Trustee of the Richard F. Roudebush Trust ("Alongi") did not have sufficient minimum contacts with Florida to establish personal jurisdiction over the Trust. Further, there was no sufficient statutory basis alleged by Hansen to support jurisdiction. This Court should reverse the Order Denying Defendant's Motion to Dismiss for Lack of Personal Jurisdiction (the "Order") (App. 4-8).

In her Answer Brief, Hansen spends much of her Statement of Case and Facts setting forth "facts" that are irrelevant to this appeal. In the Initial Brief, Alongi set forth the operative facts, which are undisputed. Hansen brought suit against Alongi alleging four counts, none of which arose in tort.

The Trust was "created in Illinois and [which] expressly provided that 'the law of Illinois shall govern the validity and interpretation of the provisions' of the 'trust agreement'" (App. 5). Alongi "has not been present in Florida and does not 'practice law' in Florida" (App. 5). Alongi had absolutely no connection with Florida whatsoever other than communications (emails, calls and letters) with Richard

Roudebush (the settlor of the trust at issue) while Mr. Roudebush lived in Florida, and communications (letters and emails) with Hansen after Alongi became trustee and sent a few payments to her in Florida (App. 5). Those are not sufficient minimum contacts sufficient to vest jurisdiction here. The trial court erred and reversal is required.

ARGUMENT

ISSUE: THE TRIAL COURT ERRED AS A MATTER OF LAW IN DENYING ALONGI'S MOTION TO DISMISS WHEN THE ONLY CONTACTS HE HAD WITH FLORIDA WERE A FEW PAYMENTS AND COMMUNICATIONS ORIGINATING IN ILLINOIS.

This Court's task in its *de novo* review of this matter is straightforward. "In [d]etermining whether a Florida court can exercise personal jurisdiction over a nonresident defendant involves a two-step analysis: (1) whether the complaint sufficiently alleges a statutory basis for the exercise of jurisdiction, and (2) whether the defendant has sufficient minimum contacts with the state to allow the court to exercise jurisdiction consistent with due process requirements." *Dunham Trust Co. v. Surrey*, 2026 WL 1154328 (Fla. 4th DCA 2026). This is the test set forth in *Venetian Salami Co. v. Parthenais*, 554 So. 2d 499 (Fla. 1989), which has been the law in

Florida for nearly forty years. Hansen acknowledges that is the law and that *Venetian Salami* sets forth the relevant inquiries in this case (AB at 18-19).

The trial court misconstrued the law to be applied. The trial court's oral ruling (set forth in the IB at 10-14) "distinguishes" *Venetian Salami* and the *Kaminski*[1] case cited as stating they "cite[] to a different statute" (App. 251). The Order found the "inopposite" because "[n]either case analyzes jurisdiction over a Defendant secured by the statute applied here" (App. 7). The trial court stated: "I have a statute that clearly seems to apply to this situation as opposed to case law that cites a different statute" (App. 251).

The trial court clearly missed the point, and V*enetian Salami* controls this matter and is not "inopposite." The first prong of the case requires that the complaint sufficiently allege a statutory basis for the exercise of jurisdiction, be that the general long arm statute (Fla. Stat. 48.193) or the statute addressing "trustee and beneficiary" jurisdiction (Fla. Stat. 736.0202). As will be demonstrated, jurisdiction was not sufficiently alleged under either statute. The

[1] *Kaminski v. Hecht*, 272 So. 3d 786 (Fla. 4th DCA 2019).

second *Venetian Salami* prong requires that sufficient minimum contacts with the state be shown sufficient to satisfy due process. Those contacts were not present here. The trial court apparently relied solely on the "statutory basis" prong, and even then incorrectly found a sufficient statutory basis was alleged.

A. Hansen Failed to Allege a Breach of Trust in This State as Required by the Statute.

The first prong may be satisfied under Florida's general long arm jurisdiction statute, Fla. Stat. §48.193 (titled "acts subjecting person to jurisdiction of courts of state"). Nothing in the record in any way meets the statutory requirements, and section 48.193 is not even mentioned in Hansen's Answer Brief.

Another statutory basis, and the one at issue in this case, is Fla. Stat. 736.0202, which generally applies to trusts that have their principal place of administration in Florida, which the Trust here did not. The relevant portion of the statute states:

> (a) Any trustee, trust beneficiary, or other person, whether or not a citizen or resident of this state, who personally or through an agent does any of the following acts related to a trust, submits to the jurisdiction of the courts of this state involving that trust:
>
> 5. *Commits a breach of trust in this state, or commits a breach of trust with respect to a trust*

> *having its principal place of administration in this state* at the time of the breach.

§ 736.0202, Fla. Stat. (emphasis added).

Hansen points to the allegations of her Complaint. That Complaint contained no tort counts. In reality it contained counts for breach of contract (for the promissory note), re-establishment of the lost promissory note, declaratory judgment, and accounting (App. 9-54). There is no count for breach of trust, breach of fiduciary duty, or anything similar.

The phrase "breach of trust" does not appear in the Complaint. Hansen points to six paragraphs, one in the general allegations and five of which appear in the declaratory judgment count (count III) (paragraphs 41-44). That count merely sought to have Alongi make past and future income payments as allegedly required by the Trust Agreement. She alleged in that count that Alongi "committed a breach of the Trust Agreement in Florida by refusing to administer the Trust Agreement in Florida" (AB at 27). That, on its face, does not allege a breach of trust, but an alleged violation of the Trust Agreement.

She points to one more sentence in the Complaint that states that Alongi "has purposefully and wrongfully manipulated the

distributions and accounting of the Trust to avoid paying the income from the assets of the Trust to Ms. Hansen" (AB at 27). Again, the declaratory judgment count seeks to have the court declare that Alongi should make the payments as required by the Trust Agreement, which essentially seeks to have the court enforce a written agreement. Whether that alleged breach of the agreement was done "purposefully and wrongfully" (even if true) does not amount to a "breach of trust."

Hansen cites *Gnaegy v. Morris*, 389 So. 3d 642, 647 (Fla. 3d DCA 2023) (AB at 27), a case where the plaintiff "filed an adversary proceeding, alleging her sister breached her fiduciary duty, individually, as personal representative of the Estate, and as trustee of the Revocable Trust; *committed a breach of trust individually and as trustee*; and engaged in maladministration of Trust assets." *Id.* at 643 (emphasis added). Hansen made no such claims here and did not sue for breach of trust. Numerous cases establish that a breach of trust may be brought as an independent cause of action. *See, e.g.*, *Kritchman v. Wolk*, 152 So. 3d 628 (Fla. 3d DCA 2014); *Landau v. Landau*, 230 So. 3d 127 (Fla 3d DCA 2017). She cites other irrelevant cases where claims for breach of fiduciary duty, etc. were brought.

AB at 28-29. It is a stretch to find that the Complaint alleged a "breach of trust" under section 736.0202 when all of the operative conduct occurred in Illinois, and therefore she failed to meet *Venetian Salami's* first prong.

Finally, Hansen makes much of the "catch-all" provision found in Forida Statutes section 736.0202(2)(b) which states that Florida courts may exercise personal jurisdiction over a trustee of a trust within or outside the state "to the maximum extent permitted by the State Constitution or the Federal Constitution." AB at 19-23. While that is true, the "maximum extent" language does not create jurisdiction in and of itself, and it clearly requires that the due process requirement of minimum contacts found in *Venetian Salami's* second prong must still be satisfied. As discussed below, they were not.

B. Hansen Failed to Establish That Alongi Had Sufficient Minimum Contacts With Florida Consistent With Due Process Requirements as Required Under The Second Prong of *Venetian Salami*.

Even if this Court finds that Hansen sufficiently pled an adequate statutory basis for the exercise of jurisdiction (though it should not), it is clear that Alongi did not have sufficient minimum

contacts with Florida as required by *Venetian Salami*. Alongi had no connection whatsoever with Florida other than the communications and payments. The trial court correctly recognized that those were not enough, stating that "[t]his Court recognizes that mere communication/payment sent to Florida would not be sufficient to create jurisdiction over a foreign person" (App. 8).

That was correct and should have ended the inquiry, and the Motion to Dismiss should have been granted. However, the Order went on to state, incorrectly, that those plain facts "that is not the mere fact in this present case and the statute applicable, Florida Statute Section 736.0202, by the plain meaning of its words seems to apply to the evidence relevant to this complaint" (App. 8). Again, the statutory basis addressed in the first *Venetian Salami* prong has nothing to do with the second prong addressing minimum contacts.

The Order went on to state "these facts are sufficient to create personal jurisdiction over Defendant in Florida. It was reasonable for Defendant to anticipate being 'hauled' into Court in Florida at the time he began to act as successor trustee given the fact that the trust's settlor and lifetime beneficiary were both residents of Florida" (App. 7). This was plain error, and the trial court did not

focus on the fact that Alongi not purposefully avail himself of the privilege of conducting business in Florida. A recent case from the Fourth District makes this clear under similar facts, though those facts are not as strong as the facts here.

In *Dunham Trust Company v. Surrey,* 2026 WL 1154328 (Fla. 4th DCA, April 29, 2026), Ms. Surrey, *a Florida resident*, created a trust in 2001 for the benefit of her children Lewis and Ruth. Ms. Surrey died in 2025. The trust instrument's "validity and interpretation" was governed by Florida law. *Id.* at *1. Appellee Dunham Trust Company ("DTC") was a Nevada corporation that was appointed as a successor co-trustee in 2014 along with Ms. Surrey's child, Lewis. Lewis was a California resident when the trust was created, but he later moved to Florida. *Id.*

Ruth, the other child and beneficiary, filed suit in Florida against DTC in Florida for breach of fiduciary duty, unjust enrichment, and accounting. She alleged Lewis misappropriated millions of dollars in trust assets and DTC breached its fiduciary duty by facilitating or ignoring Lewis's actions.

DTC moved to dismiss the complaint for lack of jurisdiction. Unlike here, DTC conceded that the first prong of *Venetian Salami*

(addressing a statutory basis for jurisdiction) was met under Fla. Stat. 736.0202(2)(a)(3) because Ms. Surrey was a Florida resident when the trust was created. However, DTC argued the second prong of *Venetian Salami* was not satisfied because DTC did not have the requisite minimum contacts with Florida. *Id.* at *1. DTC was a Nevada corporation that only had offices there, it did not do any business in Florida or have offices in Florida, and all of its duties in administering the trust occurred in Nevada and were governed by Nevada law. This is precisely the same as the facts here where Alongi fulfilled his duties to the trust in Illinois and Illinois law controlled.

The plaintiff Ruth argued that "DTC had purposefully availed itself of conducting business in Florida by agreeing to serve as co-trustee of a trust created by a Florida resident and governed by Florida law." *Id.* She further alleged that DTC "had 'connected its trusteeship to Florida' by sending trust-related communications, such as account statements, invoices, and wire transfer confirmations to Lewis after he moved to Florida." *Id.* The trial court denied DTC's motion to dismiss for lack of jurisdiction.

The Fourth District reversed. It found that:

> The minimum contacts test asks whether the defendant's "suit-related conduct" created a "substantial connection" with the forum state. *Walden v. Fiore*, 571 U.S. 277, 284, 134 S.Ct. 1115, 188 L.Ed.2d 12 (2014). The defendant, by his own conduct, must have "purposefully avail[ed]" himself of the privilege of conducting activities in the forum state, thereby invoking the benefits and protections of its laws. *Burger King Corp. v. Rudzewicz*, 471 U.S. 462, 474-76, 105 S.Ct. 2174, 85 L.Ed.2d 528 (1985) (citation omitted); *see also World-Wide Volkswagen Corp. v. Woodson*, 444 U.S. 286, 297, 100 S.Ct. 559, 62 L.Ed.2d 490 (1980) (stating that the defendant's conduct and connection with the forum state must be such that "he should reasonably anticipate being haled into court there").
>
> The relevant facts in this case are undisputed. Ruth maintains that DTC established sufficient minimum contacts with Florida by: (1) agreeing to serve as co-trustee of a trust created by a Florida resident and containing a Florida choice-of-law provision, and (2) sending trust-related communications to Lewis after he moved to Florida.

Id. at *2. Note that when the trust at issue was created the Settlor, Mr. Roudebush, was not a Florida resident and the Trust was governed by Illinois law, not Florida law.

The *Dunham* court continued, and cited a United States Supreme Court case, *Hanson v. Denckla*:

The United States Supreme Court considered this issue under similar facts in *Hanson v. Denckla*, 357 U.S. 235, 78 S.Ct. 1228, 2 L.Ed.2d 1283 (1958). In that case, a Pennsylvania resident executed a trust instrument in Delaware and appointed a Delaware company as trustee. *Id.* at 238, 78 S.Ct. 1228. The settlor later moved to Florida, where she executed a power of appointment in which she appointed a portion of the trust assets to two other trusts. *Id.* at 239, 78 S.Ct. 1228. After the settlor's death, two beneficiaries of a residuary clause in her will filed suit in Florida, alleging that the original trust instrument was invalid. *See id.* at 239-43, 78 S.Ct. 1228. The suit named the Delaware trustee among other defendants. *Id.* at 240-41, 78 S.Ct. 1228. The case travelled to the Supreme Court on several issues, including whether the Delaware trustee had a "sufficient affiliation" with the state of Florida to allow the state's courts to exercise personal jurisdiction over it. *See id.* at 250-51, 78 S.Ct. 1228.

The Supreme Court held that the trustee's actions were insufficient to sustain the Florida court's exercise of personal jurisdiction because the trustee had not purposefully availed itself of conducting business in Florida. *Id.* at 253-54, 78 S.Ct. 1228. The Court noted that the trustee did not have an office in Florida or conduct any business there, had not solicited any business there, and had not administered any of the trust assets there. *Id.* at 251, 78 S.Ct. 1228. The Court explained that the cause of action did not arise out of an "act done or transaction consummated" in Florida, and the trust was connected to Florida only by the settlor's "unilateral activity" in moving to the state and executing the power of appointment there. *Id.* at

> 251-53, 78 S.Ct. 1228. The Court concluded that the trustee's remitting of trust income to the settlor after she moved to Florida was insufficient to create the necessary relationship with the state. *Id.* at 252, 78 S.Ct. 1228. The Court also acknowledged the Florida Supreme Court's ruling that Florida law applied to determine the validity of the trust and the power of appointment, but it held that ruling did not confer personal jurisdiction over the Delaware trustee even if it was correct for choice-of-law purposes. *Id.* at 253, 78 S.Ct. 1228.

Id. at *2.

The *Dunham* court found that "[l]ike the nonresident trustee in *Hanson*, DTC is not subject to personal jurisdiction in Florida because it did not purposefully avail itself of the privilege of conducting business in Florida. Although DTC agreed to serve as co-trustee of a trust created by a Florida resident, DTC was not a party to the trust instrument when it was executed in Florida, and no evidence indicates that DTC solicited appointment as co-trustee or otherwise intentionally sought to create a relationship with Florida." *Id.* at *3.[2]

[2] *Dunham* also cited *Hoag v. French*, 238 Ariz. 118, 357 P.3d 153, 158 (Ariz. Ct. App. 2015) (holding that a Bahamian corporation did not purposefully avail itself of conducting business in Arizona by accepting an appointment as a successor trustee of a trust created by an Arizona resident) and *Phillips Exeter Acad. v. Howard Phillips*

As noted above, *Dunham* also relied on *Walden v. Fiore,* 571 U.S. 277 (2014), which controls this matter. In *Walden*, the United States Supreme Court stated:

> "[o]ur "minimum contacts" analysis *looks to the defendant's contacts with the forum State itself, not the defendant's contacts with persons who reside there*. See, *e.g., International Shoe, supra,* at 319, 66 S.Ct. 154 (Due process "does not contemplate that a state may make binding a judgment *in personam* against an individual ... with which the state has no contacts, ties, or relations")."

Id. at 285. (emphasis added).

The *Walden* Court continued:

> *But the plaintiff cannot be the only link between the defendant and the forum*. Rather, *it is the defendant's conduct that must form the necessary connection with the forum State that is the basis for its jurisdiction over him*. See *Burger King, supra,* at 478, 105 S.Ct. 2174 ("If the question is whether an individual's contract with an out-of-state party *alone* can automatically establish sufficient minimum contacts in the other party's home forum, we believe the answer clearly is that it cannot").

Id. at 285-86 (emphasis added).

The Supreme Court further clarified:

Fund, Inc., 196 F.3d 284, 292 (1st Cir. 1999) (noting that, to establish purposeful availment, "it is not enough to prove that a defendant agreed to act as the trustee of a trust that benefitted a resident of the forum state").

> To be sure, a defendant's contacts with the forum State may be intertwined with his transactions or interactions with the plaintiff or other parties. *But a defendant's relationship with a plaintiff or third party, standing alone, is an insufficient basis for jurisdiction*. See *Rush, supra,* at 332, 100 S.Ct. 571 ("Naturally, the parties' relationships with each other may be significant in evaluating their ties to the forum. The requirements of *International Shoe,* however, must be met as to each defendant over whom a state court exercises jurisdiction"). Due process requires that a defendant be haled into court in a forum State *based on his own affiliation with the State*, not based on the "random, fortuitous, or attenuated" contacts he makes by interacting with other persons affiliated with the State. *Burger King,* 471 U.S., at 475, 105 S.Ct. 2174 (internal quotation marks omitted).

Id. at 286 (emphasis added).

The *Walden* principles clearly demonstrate that Alongi had insufficient contacts to establish jurisdiction here. Alongi had no contacts with Florida but for his "contacts with persons who reside there," meaning Hansen. As *Walden* notes, Hansen "cannot be the only link between" Alongi and Florida. The facts clearly demonstrate that was the case here. Hansen's relationship with Alongi, "standing alone, is an insufficient basis for jurisdiction." *Id.* at 286. The trial court's, and Hansen's, reliance on the Settlor's alleged intentions or

Hansen's residence is of no consequence in this Court's "minimum contacts" analysis. *Dunham*, and the Supreme Court decisions *Hanson* and *Walden*, should control this matter.

In her Answer Brief, Hansen briefly addresses the critical "minimum contacts" issue. AB at 31-35. She does not attempt to defend the justifications relied upon by the trial court in its Order. Instead, she argues that "[b]y committing a tort in Florida, a nonresident establishes sufficient minimum contacts with Florida to support personal jurisdiction" AB at 31. She then cites four cases to support this contention. AB at 31-32.

The obvious problem is this is not an intentional tort case. It is a case for breach of contract, establishment of a lost promissory note, declaratory judgment, and accounting. Hansen's intentional tort authorities do not bear on this case, and all of the trust administration decisions occurred in Illinois. She points to her affidavit in an attempt to generate sympathy (AB at 34-35), but that has no bearing on this Court's inquiry. She ignores the cases and arguments made in the IB that deal with the essential minimum contacts inquiry.

For example, the Initial Brief cited and addressed *Cornerstone Inv. Funding, LLC v. Painted Post Group, Inc.,* 188 So. 3d 904 (Fla. 4th DCA 2016), where a Florida entity sued a Virginia entity to recover on a promissory note. IB at 25-26. The court held that "the mere fact, however, that Cornerstone allegedly breached a contract by failing to make payments on the contract in Florida would not constitute sufficient minimum contacts with this State to satisfy due process." *Id.* Hansen never mentions or distinguishes *Cornerstone* in her AB and never mentions or addresses the *seven* cases cited by Alongi establishing similar principles. IB at 26-27.

Hansen then, without citation to any authority, argues that "the alleged intentional breaches of trust were purposefully directed to Florida," and that Alongi's actions "lead to the inescapable conclusion that Alongi must have reasonably anticipated that Hansen might hale him into a Florida court." AB at 32. Again, these arguments are made without any citation to authority, and they ignore the relevant law. The analysis must focus on Alongi's actual contacts with Florida, which were nonexistent except for the limited communications and payments as acknowledged by the trial court.

Finally, it is worth noting that in the Initial Brief (IB at 27-29) and below Alongi relied on *Kaminsky v. Hecht*, 272 So. 3d 786 (Fla. 4th DCA 2019) which the trial court incorrectly distinguished as relying on the general long-arm statute (Fla. Stat. 48.193) and not the "trustee and beneficiary" jurisdiction statute (Fla. Stat. 736.0202). *Kaminsky* involved a trustee that never resided in Florida, the trust was always administered out of state, and no trust assets were located in Florida. The *Kaminsky* court noted that "there are no allegations of acts or misconduct by Kaminsky in Florida. The failure to provide an accounting and any mismanagement of Trust assets occurred in New York or New Jersey."

Hansen addresses *Kaminsky* in a footnote. AB at 30 n.8. Her only argument is the irrelevant fact that "in that case it was undisputed that the settlor never resided in Florida." This is a meaningless distinction that ignores the real inquiry in this matter. The settlor's residence had nothing to do with minimum contacts.

CONCLUSION

The trial court incorrectly denied Alongi's Motion to Dismiss for Lack of Personal Jurisdiction because neither prong of *Venetian*

Salami was satisfied. The Order should be reversed and the matter remanded with instructions to dismiss Hansen's Complaint.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I CERTIFY that the foregoing was e-filed pursuant to Florida Rule of Judicial Administration 2.525; that pursuant to A05D18-02, the foregoing was emailed to the undersigned's client and served by email or U.S. regular mail in compliance with Florida Rule of Judicial Administration 2.516(b)(1)(A) to: **Bart R. Valdes, Esquire,** DSK Law, 609 West Horatio Street, Tampa, Florida 33606 (Email: bvaldes@dsklawgroup.com) (Counsel for Plaintiff); **L. Reed**

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CERTIFICATE OF COMPLIANCE

I CERTIFY that pursuant to Florida Rules of Appellate Procedure 9.045(b) and 9.210(a)(2)(B), as amended, this pleading was prepared using proportionately spaced Bookman Old Style 14-point font and complies with the applicable font and word count limit requirements.

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